

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CRIMINAL MISCELLANEOUS JURISIDITION)

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

Criminal Miscellaneous Case No. 33516 of 2023

Md. Nizam Uddin Bhuiyan

.... Accused-Petitioner

-Versus-

The State and another

.... Opposite Parties

None appears for the petitioner

Mr. Sujit Chatterjee, D.A.G. with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

.... For the State.

Mr. Md. Kaiser Zahid Bhuiyan, Advocate

....For opposite party No. 2

Heard and Judgment on 09.01.2024

S M Kuddus Zaman, J:

On an application under section 561A of the Code of Criminal Procedure this Rule was issued calling upon the opposite parties to show cause as to why the proceedings of C.R. Case No. 265 of 2022 under sections 406/420/506 of the Penal Code, now pending in the Court of learned Chief Judicial Magistrate, Jhenaidah should not be quashed and/or pass such other or further order or orders as to this Court may seem fit and proper.

Facts in short are that opposite party No. 2 complainant being the owner of a rice mill supplied rice to the accused petitioner of Taka 12,26,190.00. But despite repeated reminder for payment of above outstanding money the accused refused to pay the same.

No one appears on behalf of the petitioner when the matter is taken up for hearing, although, the matter appeared in the list for hearing today.

Mr. Md. Shah Alam Swapon, learned Advocate for the opposite party No. 2 submits that before the learned Judicial Magistrate the accused petitioner voluntarily submitted a written “অঙ্গীকারনামা” on 10.10.2022 with assurance to make full payment of above outstanding money of Taka 12,26,190.00 to the complainant. But instead of making payment of above, the accused has moved to this Court and obtained this Rule and an order of stay. He further submits that the petitioner has suppressed all above facts before this Court and hence the Rule is liable to be discharged.

We have heard the learned Advocate for the opposite party and perused the materials on record.

It appears that this matter was heard-in-part on 23.08.2023 and the learned Advocate for the petitioner expressed his regret for suppression of material facts as to the written “অঙ্গীকারনামা” given before the Court of Judicial Magistrate on 10.10.2022 for repayment of total dues of the complainant and sought 03(three) months adjournment/stand over so that by above time he could make payment of the above money to the complainant and to submit a compliance before this Court. But today the learned Advocate for the accused petitioner neither appeared nor filed any compliance of payment of above outstanding dues.

On consideration of above materials on record we hold that the accused petitioner has committed serious illegality by deliberately suppression of material facts at the time of filing of this petition and obtaining this Rule and an order of stay.

In above view of the materials on record we hold that due to above suppression of facts and failure of the petitioner to honour commitment given to the Court of law this petition under section 561A of the Code of Criminal Procedure is tainted with illegality and the Rule issued in this connection is liable to be discharged.

In the result, the Rule is discharged.

Communicate this judgment and order to the Court concerned at once.

Md. Ali Reza, J:

I agree.